

See also: Aristotle and natural law 32–33 ■ The origins of canon law 42–47 ■ Thomas Aquinas 72–73 ■ The Workers' Accident Insurance System 164–167 ■ The Universal Declaration of Human Rights 222–229



The Act did not establish a person's legal right to support in the face of hardship, but it did confirm that those who administer laws have a legal obligation to provide support, paid for through taxation. The idea of central responsibility for the poor became the legal root for the state welfare systems that grew from the late 19th century in Germany, the UK, and other countries.

A labor shortage

The pressure for poor laws dated back in part to the aftermath of the Black Death of 1348–1350. The plague killed 30–40 percent of people in England, leading to severe labor shortages. In 1351, the English Parliament passed the Statute of Labourers, which aimed to keep all able-bodied people in work and at preplague wage levels. Laborers, however, saw the demand for labor as a way to move where they wanted and earn higher wages.

A 1349 manuscript shows the burial of Black Death victims. Sweeping in from Asia, the plague killed more than 20 million people in Europe.

In 1388, Parliament countered with the Statute of Cambridge, which restricted the movement of workers, including beggars deemed to be “sturdy,” in order to keep them working cheaply for their overlords. In return, the statute imposed on local administrations, known as “hundreds,” the responsibility for providing some basic relief for the “impotent poor,” those deemed incapable of working. And so a two-pronged approach to poor relief

emerged. On the one hand, poor laws aimed to support the needy; on the other, they were a cudgel to impel the poor into low-wage work.

Beggars and vagabonds

The “sturdy”—those considered fit for work—could not escape labor. Under the 1536 Act for Punishment of Sturdy Vagabonds and Beggars, anyone wandering far from their home parish without a job was considered a “vagabond” and »

